

NovaTech Enterprises

VEN-CON-003 | Professional Services Agreement — Apex Consulting Group LLC

RECITALS

NovaTech Enterprises Inc. ("Client") wishes to engage Apex Consulting Group LLC ("Consultant") to provide technology strategy and transformation consulting services. This Agreement, effective 1 May 2026, sets out the terms governing that engagement.

1. SCOPE OF SERVICES

Consultant will provide professional services as set out in the Statement of Work SOW-APEX-01-2026 ("SOW"), which is incorporated into this Agreement. The SOW covers Phase 1 of NovaTech's AI Transformation Programme, including current-state assessment, target architecture definition, and vendor selection support.

2. FEES

Consultant's fees are time and materials based on the following rates agreed for this engagement: Principal Consultant: USD 385/hour; Senior Consultant: USD 295/hour; Analyst: USD 195/hour. Estimated total engagement value: USD 520,000 over 6 months. Any overage exceeding 115% of the estimate requires written approval from Client's VP Technology before hours are incurred.

3. INVOICING

Consultant will invoice bi-weekly based on hours logged in the Client-approved time tracking system. Invoices must include consultant name, hours by day, and task reference from the SOW. Payment is due within 21 days of invoice. Disputed amounts must be raised within 10 days of invoice receipt. Undisputed amounts remain payable.

4. INTELLECTUAL PROPERTY

All deliverables created specifically for Client under this Agreement are Work Made for Hire and shall be the sole property of Client upon full payment. Consultant retains ownership of pre-existing IP and methodologies incorporated into deliverables; Consultant grants Client a perpetual, royalty-free licence to use such pre-existing IP as embedded in the deliverables.

5. KEY PERSONNEL

The following individuals are designated Key Personnel: Sarah Chen (Programme Lead) and Marcus Reid (AI Architecture Lead). Consultant may not replace Key Personnel without 30 days written notice and Client's written consent, which shall not be unreasonably withheld. Substitutes must have equivalent experience.

6. CONFIDENTIALITY AND NON-SOLICITATION

Consultant agrees to keep all Client information confidential. During the engagement and for 12 months after termination, Consultant shall not solicit Client's employees for employment or contract work. Client agrees to a reciprocal non-solicitation of Consultant's staff.

7. TERMINATION FOR CONVENIENCE

Either party may terminate this Agreement for convenience with 30 days written notice. Client shall pay for all work completed and expenses incurred up to the termination date. No cancellation fees apply. All work product to date becomes Client property upon payment.